

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1156

By: Cornwell

AS INTRODUCED

An Act relating to wind energy facilities; amending 17 O.S. 2021, Section 160.20, as amended by Section 21, Chapter 126, O.S.L. 2023 (17 O.S. Supp. 2024, Section 160.20), which relates to setback requirements; modifying date; prohibiting construction of wind energy facilities within certain distance of adjacent properties; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 17 O.S. 2021, Section 160.20, as amended by Section 21, Chapter 126, O.S.L. 2023 (17 O.S. Supp. 2024, Section 160.20), is amended to read as follows:

Section 160.20. A. After ~~August 21, 2015~~ November 1, 2025, no wind energy facility may be constructed if the base of any tower is located at a distance of less than:

1. One and one-half (1 1/2) nautical miles from the center line of any runway located on:

a. a public-use airport as defined in Section 120.2 of Title 3 of the Oklahoma Statutes, or

b. an airport owned by a municipality;

1 2. One and one-half (1 1/2) nautical miles from any public
2 school which is a part of a public school district; ~~or~~

3 3. One and one-half (1 1/2) nautical miles from a hospital; or

4 4. One-half (1/2) mile from the property line of an adjacent
5 property.

6 B. Attestation of compliance with the setback requirements in
7 this section shall be included in any reports required by the
8 Corporation Commission. Stakeholder and landowner disputes arising
9 under subsection A of this section shall fall under the exclusive
10 jurisdiction of the district courts. The Corporation Commission may
11 seek enforcement of the submission and attestation requirements of
12 this subsection and subsection C of this section through its
13 administrative court system.

14 C. After April 3, 2018, construction or operation of a proposed
15 individual wind turbine or any other individual structure requiring
16 a Federal Aviation Administration (FAA) Form 7460-1 that is part of
17 a wind energy facility shall not encroach upon or otherwise have a
18 significant adverse impact on the mission, training or operations of
19 any military installation or branch of military as determined by the
20 Military Aviation and Installation Assurance Siting Clearinghouse
21 (Clearinghouse) and the FAA. Areas of impact include, but are not
22 limited to, military training routes, drop zones, approaches to
23 runways and bombing ranges. No individual wind turbine or any other
24 individual structure that requires a FAA 7460-1 form that is part of

1 a wind energy facility may be constructed or expanded unless there
2 is an active Determination of No Hazard from the FAA and adverse
3 impacts to the United States Department of Defense, pursuant to
4 Title 32 of the Code of Federal Regulations, Section 211.6, have
5 been resolved as evidenced by documentation from the Clearinghouse
6 for the individual wind turbine or other individual structure. The
7 Mission Compatibility Certification Letter or successor form may
8 serve as such evidence of adverse impacts being resolved with the
9 Department of Defense or successor agency.

10 1. The Determination of No Hazard and documentation of the
11 resolution of adverse impacts to the Department of Defense shall be
12 filed with the Corporation Commission and the Oklahoma Department of
13 Aerospace and Aeronautics.

14 2. The requirements established by this subsection shall not
15 prohibit the construction of an individual wind turbine or any other
16 individual structure requiring a FAA 7460-1 form that is part of a
17 wind energy facility if that individual wind turbine or other
18 individual structure has received a Determination of No Hazard or
19 mitigation plan on or before April 3, 2018.

20 3. The Corporation Commission is authorized to promulgate rules
21 and regulations for the implementation of the provisions of this
22 section and Section 160.21 of this title.

23 D. If an owner of a wind energy facility fails to submit an
24 active Determination of No Hazard and documentation that adverse

1 impacts to the Department of Defense have been resolved by the
2 Clearinghouse for the individual wind turbine or other individual
3 structure prior to the start of construction, the owner shall be
4 subject to an administrative penalty not to exceed One Thousand Five
5 Hundred Dollars (\$1,500.00) per day, per violation from the
6 Corporation Commission as provided by law. In addition,
7 stakeholders, including, but not limited to, the Corporation
8 Commission or the Oklahoma Department of Aerospace and Aeronautics
9 may institute an action in any court of general jurisdiction to
10 prevent, restrain, correct or abate any violation of subsection C of
11 this section other than Corporation Commission actions related to
12 submissions or attestations.

13 SECTION 2. This act shall become effective November 1, 2025.

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